CHAPTER 253

THE DAR ES SALAAM MARITIME INSTITUTE ACT

[PRINCIPAL LEGISLATION]

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CHAPTER 253

THE DAR ES SALAAM MARITIME INSTITUTE ACT

An Act to establish the Dar es Salaam Maritime Institute and to provide for the functions, management and control of the Institute and for related matters.

[1st July, 1992]
[GN. No. 132 of 1992]

Act No.
22 of 1991
8 of 2023
GN No.
243 of 2016

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PART I
PRELIMINARY PROVISIONS

Short title

1. This Act may be cited as the Dar es Salaam Maritime Institute Act.

Interpretation
Act No.
8 of 2023 s.17
and 18

2. In this Act, unless the context otherwise requires-

"Academic Council" means the Academic Council of the Institute established under section 7;

"Board" means the Board of Governors of the Institute established under section 5;

Cap. 165
GN. No.
243 of 2016

"Board of Examiners" means the Board of Examiners established under regulation 37 of the Merchant Shipping (Training, Certification and Manning) Regulations;

"Institute" means the Dar es Salaam Maritime Institute established under section 3;

"Minister" means the Minister responsible for maritime affairs;

"Rector" means the Rector of the Institute appointed under section 10; and

"students organisation" means an organisation approved in writing by the Board pursuant to section 12.

PART II
THE INSTITUTE

Establishment of Institute

3.–(1) There is hereby established an Institute which shall be known as the Dar es Salaam Maritime Institute.

(2) The Institute shall be a body corporate and shall-

(a) have perpetual succession and an official seal;

(b) in its corporate name be capable of suing and being sued; and

(c) be capable of holding, purchasing or otherwise acquiring in any other way, any movable property or immovable property and disposing of any of its property.

Functions of Institute Act No. 8 of 2023 s.19

4. The functions of the Institute shall be to-

(a) provide facilities for the study of and training in the principles, procedures and techniques of basic training of seafarers, marine engineering, navigation, management of shipping enterprises, economics, special skills and knowledge of pilotage or tug handling and such other related subjects as the Board may decide;

(b) conduct training programmes in the subject specified in paragraph (a) and in such other related subjects as the Board may decide;

(c) engage in research into theoretical, operational and organisational problems and training needs in the subjects specified in paragraph (a) and in the maritime sector in general;

(d) evaluate the results achieved by the Institutes training programme;

(e) provide consultancy services to the government, parastatal bodies and such other bodies or persons as may be necessary;

(f) sponsor, arrange or provide facilities for conferences and seminars;

(g) establish departments within the Institute for the organisation and administration of its work and activities;

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(h) conduct examination on trained programs;

(i) establish and foster closer association with other colleges, academies and institutions both nationally and internationally;

(j) arrange for the publication and general dissemination of materials produced in connection with the work and activities of the Institute; and

(k) do all such acts and things and enter into all such contracts and transactions, as are, in the opinions of the Board, expedient or necessary for the proper and efficient discharge of functions of the Institute.

PART III
ADMINISTRATION

Board of Governors Act No. 8 of 2023 s.20

5.–(1) There shall be a Board of Governors of the Institute.

(2) The provisions of the Schedule shall have effect as to the composition of the Board, tenure of office of its members, termination of their appointments, the proceedings of the Board and other matters in relation to the Board and its members.

(3) The Board may, subject to such terms and conditions as it may determine, form from among its members, such number of committees as it deems necessary for better carrying out of its functions under this Act.

(4) The Minister may, by an order published in the *Gazette,* amend, vary or replace all or any of the provisions of the Schedule to this Act.

Powers and duties of Board Act No. 8 of 2023 s.21

6.–(1) Subject to the provisions of this Act, government and control of the Institute shall be vested in the Board.

(2) In particular and without prejudice to the generality of subsection (1), the Board shall have powers-

(a) to administer the property of the Institute, both movable and immovable;

(b) to administer the funds and other assets of the Institute;

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(c) to signify the acts of the Institute by use of the official seal;
(d) on behalf of the Institute, to receive gifts, donations, grants or other moneys and to make disbursements to other persons or bodies;
(e) subject to the provisions of this Act, to appoint such officers of the Institute as it may deem necessary; and
(f) provide strategic guidance and formulate policies for operation and management of the Institute;
(g) conduct managerial oversight and review the activities and performance of management of the Institute;
(h) approve strategic and investment plans, operational guidelines and any other operational instruments of the Institute; and
(i) to do all acts or things provided for in this Act which may, in the opinion of the Board, be necessary for the proper carrying out of the functions of the Institute.

Establishment of Academic Council Act No. 8 of 2023 s.22

7.–(1) There is established the Academic Council whose members shall be appointed by the Board as follows:
(a) Rector who shall be the Chairman;
(b) Deputy Rector Academic, Research and Consultancy who shall be the Vice Chairman;
(c) Deputy Rector Planning, Finance and Administration;
(d) Director of Academics;
(e) Director of Academics Support Services;
(f) one representative of the student's organisation;
(g) two members representing other academic training institutions; and
(h) one member from other maritime related institutions.

(2) A member of the Academic Council shall, unless his appointment is determined by the appointing authority, or he otherwise ceases to be a member, hold office for a term of three years, and be eligible for re-appointment.

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(3) The Council may co-opt any person to attend and deliberate on a specific matter as the Council may determine but such person shall not have the right to vote.

[s. 6A]

Functions of Academic Council Act No. 8 of 2023 s.22

8.–(1) The Academic Council shall, subject to the directives of the Board, be responsible for the control of education, research, consultancy and all other academic activities within the Institute.

(2) Notwithstanding the generality of subsection (1), the Academic Council shall undertake the following functions:

(a) approve the curricular for long and short programmes leading to the conferment of any award of the Institute;
(b) set, safeguard and maintain academic standards of the Institute;
(c) decide whether any candidate for a degree, diploma, certificate or other awards of the Institute has attained the standard of proficiency and is otherwise a fit and proper person for the grant of the degree, diploma, certificate or other awards of the Institute;
(d) withdraw award fraudulently obtained by any person from the Institute;
(e) consider recommendations made to it by academic Committee of the Institute, and to take such action on it as it may consider appropriate;
(f) make proposal to the Board on the academic affairs of the Institute;
(g) recommend to the Board the establishment or disestablishment of academic bodies of the Institute;
(h) recommend to the Board the fee structures and other charges for various programmes or course and services offered or provided by the Institute;
(i) handle matters relating to examination results, appeals and irregularities; and
(j) discharge such other function as may be conferred upon it by or under the Act.

[s. 6B]

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Rules
Act No.
8 of 2023 s.23

9.–(1) The Board may make rules prescribing-

(a) fees and other charges of the Institute;

(b) for the regulation of disciplinary proceedings against the officers and students of the Institute;

(c) academic procedures;

(d) matters relating to discipline among the members of the staff of the Institute and students;

(e) the qualifications necessary for entry to the Institute, the courses of instruction to be provided by the Institute, the type of awards to be offered and the duration and number of academic terms;

(f) the grant of scholarships and studentship and the revocation of any such grant; and

(g) the terms and conditions of service, including the appointment, dismissal, salaries and retirement benefits of the members of staff of the Institute.

(2) The Board may, after consultation with the Board of Examiners and other Institutions concerned with the maritime industry, promulgate rules relating generally to the academic management of the Institute and in particular to-

(a) the qualifications necessary for entry to the Institute, the courses of instruction to be provided by the Institute, the type of awards to be offered and the duration and number of academic terms; and

(b) the grant of scholarships and studentship and the revocation of any such grant.

[s. 7]

Rector
Act No.
8 of 2023 s.17
and 24

10.–(1) The Minister shall, after consultation with the Board, appoint a suitable person to be the Rector of the Institute.

(2) The Rector shall hold office for a period of five years renewable once based on satisfactory performance.

(3) The Rector shall-

(a) be the Chief Executive Officer of the Institute and shall be responsible to the Board;

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(b) exercise such functions of the Institute as the Board may delegate to him to enable him to transact all the day to day business of the Institute; and

(c) subject to any directions or restrictions given or imposed by the Board, have the power to exercise supervision and control over acts and proceedings of all employees of the Institute and to decide upon and dispose of all questions relating to the terms and conditions of service of the employees of the Institute, having due regard to the scheme of service.

(4) In the exercise of the powers vested in him by this section or delegated to him by the Board, the Rector shall comply with the direction of policy of a general or specific nature given to him by the Board and shall not, without the prior approval of the Board, whether given generally or specifically, depart or permit departure from the approved estimates of expenditure or the approved establishment of the Institute or the normal procedure in dealing with any particular matter.

[s. 8]

Staff

11. The Board may appoint on such terms and conditions as it deems fit, such academic and administrative staff of the Institute as it may consider necessary for the proper carrying out of the functions of the Institute.

[s. 9]

Power to approve organization Act No. 8 of 2023 s.25

12.–(1) There may be established within the Institute an organisation of the students of the Institute for the purpose of representing and coordinating the affairs of and amongst the students.

(2) An organisation of students under subsection (1) shall be of such form and name as shall be approved by the Board.

[s. 10]

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PART IV
ADMISSION, EXAMINATIONS AND CERTIFICATION[1]

Admission and payment of fees on admission Act No. 8 of 2023 s.27

13.–(1) A person may, subject to such conditions as the Board may impose, be admitted to the Institute.

(2) Subject to section 9(1), the fees payable on admission shall be such as will be sufficient to meet the actual costs of training of a student by the Institute.

(3) A student who is a non-Tanzanian shall pay the fees payable under subsection (2) in foreign currency to be determined by the Institute.

[s. 11]

Examinations and certificates Act No. 8 of 2023 s.28 GN. No. 130 of 1981 Cap. 165

14.–(1) Examinations shall be conducted by the Institute in accordance with the law of relevant institutions established for that purpose.

(2) The Institute shall issue to a candidate who qualifies examinations a certificate in a prescribed form.

[s. 12]

Repealed

15. [Repealed by Act No. 8 of 2023, s. 29]

[s. 13]

PART V
FINANCIAL PROVISIONS

Funds of Institute

16. The funds of the Institute shall consist of-

(a) such moneys as may be provided by Parliament for the purposes of the Institute;

(b) such moneys as may be provided for the purpose of the Institute from other sources by way of fees, gifts, grants or otherwise;

1 The heading of this Part is amended by Act No. 8 of 2023 s. 26

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(c) such sums as the Board may, subject to section 17, borrow for the purpose of the Institute; and

(d) such sums as may in any manner become payable to or vested in the Institute either under the provisions of this Act or incidental to the carrying out of its functions.

[s. 14]

Power to borrow
Act No. 8 of 2023 s.30

17. With the prior approval of the Minister, the Board may borrow monies for and on behalf of the Institute by way of loan or overdraft, as the Board may deem fit, upon such security and such terms and conditions relating to the repayment of the principal and payment of interest, and subject to a directions by the Minister.

[s. 15]

Annual and supplementary budget

18.–(1) In this Act, "financial year" means a period not exceeding twelve consecutive months designated in that behalf by the Board.

(2) The first financial year after the commencement of this Act, shall commence on the date of the commencement of this Act and may be of a longer or shorter period than twelve months.

(3) Not less than two months before the beginning of a financial year, other than the first financial year, the Board shall at its meeting specially convened for that purpose, pass a detailed budget, in this Act referred to as "the annual budget" of the amounts expected to be-

(a) received; and

(b) disbursed,

by the Institute during that financial year.

(4) Where in a financial year, the Board requires to make a disbursement not provided for or of an amount in excess of the amount provided for in the annual budget for that year, the Board shall at a meeting pass a supplementary budget detailing that disbursement.

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(5) The annual budget and every supplementary budget if any, shall be in such form and include such details as the Minister may direct.

(6) Soon after passing an annual budget or a supplementary budget, the Board shall submit the annual budget or supplementary budget to the Minister for his approval.

(7) The Minister shall upon receipt of the annual budget or any supplementary budget, approve or disapprove the same or may approve subject to such amendments as he may deem fit.

(8) Where the Minister has approved any annual budget or any supplementary budget, such budget shall be binding on the Board which subject to subsection (9), shall confine the disbursement within the items and amounts contained in the budget or supplementary budget as approved by the Minister.

(9) The Board may-

(a) make a disbursement with the sanction in writing of the Minister notwithstanding that, such disbursement is not provided for in any budget;

(b) transfer a sum not exceeding five hundred thousand shillings for in any budget in respect of any item, to any other item contained in such budget; or

(c) adjust expenditure limits to take account of circumstances not reasonably for-seeable at the time the budget was prepared, subject to submitting a supplementary budget to the Minister within two months of such alteration of expenditure.

[s. 16]

Investments

19. With the prior approval of the Minister, the Board may invest a part of the money available in any fund in investments authorised and subject to such conditions as are prescribed by the Trustees Investments Act in relation to investment of funds by a trustee.

Cap. 53

[s. 17]

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Accounts and audit

20.–(1) The Board shall cause to be recorded and kept proper books of accounts and record with respect to-

(a) the receipt and expenditure of monies and other financial transactions of the Institute; and

(b) the assets and liabilities of the Institute and shall cause to be made out for every financial year, a statement showing details of the income and expenditure of the Institute and a balance sheet in respect of all its assets and liabilities.

(2) Within six months of the close of a financial year, the accounts including the balance sheet shall be audited by the Controller and Auditor General established by the Public Audit Act.

Cap. 418

(3) An audited balance sheet shall be placed before a meeting of the Board and, where adopted by the Board, shall be endorsed with a certificate that it has been so adopted.

(4) As soon as the accounts of the Institute have been audited and not later than six months after the close of such financial year, the Board shall submit to the Minister a copy of the audited statement of accounts together with a copy of the report thereon made by the auditors.

[s. 18]

Rector's report Act No. 8 of 2023 s.17

21. The Rector shall, at the end of each financial year, prepare a report on the activities of the Institute during the financial year and, after the Board has approved the report, submit the report to the Minister.

[s. 19]

Laying of documents Act No. 8 of 2023 s.17

22. The Minister shall, as soon as may be practicable and not later than twelve months after the close of a financial year, lay before the National Assembly the following documents in relation to that financial year a copy of the-

(a) auditor's report; and

(b) Rector's report.

[s. 20]

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PART VI
MISCELLANEOUS PROVISIONS

Remuneration and fees Act No. 8 of 2023 s.31

23. Members of the Board shall be entitled to and be paid such fees, allowances or expenses as may be prescribed by the relevant authority.

[s. 21]

Delegation of power by Board Act No. 8 of 2023 s.32

24.–(1) Subject to the provisions of subsection (5), the Board may, by writing under the official seal of the Institute and subject to such terms, conditions and restrictions as it may specify, delegate to a committee of the Board or to an employee of the Institute, all or any of the functions, powers or duties conferred or imposed by this Act on the Board and where a delegation is so made, the delegated function, power or duty may be performed or exercised by the person so delegated.

(2) The delegation made under subsection (1) shall be made by office and not by name and in every case where delegation is so made, each successive holder of the office in question and any person who occupies or performs the duty of that office shall, without any further authority, perform or exercise the delegated function, power or duty in accordance with the delegation made by the Board.

(3) The Board may revoke a delegation made by it under this section.

(4) Delegation made under this section shall not prevent the Board from itself performing or exercising the function, power or duty so delegated.

(5) The Board shall not have power under this section to delegate-

(a) its powers of delegation; or

(b) the power to approve the annual budget or a supplementary budget, the annual balance sheet or any of statement of accounts.

[s. 22]

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Liabilities of Board members, employees and agents
Cap. 16
Cap. 76

25. Without prejudice to the provisions of section 284A of the Penal Code or of the Public Officers (Recovery of Debts) Act, act or thing done or omitted to be done by a person who is a member of the Board, employee or agent of the Institute shall not, if done or omitted *bona fide* in the execution or purported execution of his duties as a member of the Board or employee or agent of the Institute, subject that person to any action, liability or demand of any kind.

[s. 23]

Regulations
Act No.
8 of 2023 s.33

26.–(1) The Minister may make regulations for the better carrying out of the purposes of this Act, and without prejudice to the generality of the foregoing, may make regulations-

(a) prescribing terms, conditions and procedures for carrying out research and providing consultancy services; and

(b) providing for anything which, in the opinion of the Minister, is necessary or expedient for the better carrying out of the provisions of this Act.

(2) The regulations made under this section shall be published in the *Gazette*.

[s. 24]

Savings and Transitional provisions
Act No.
8 of 2023 s.17

27. Notwithstanding the enactment of this Act-

(a) assets and liabilities of the former Institute immediately prior to the coming into operation of this Act shall pass by succession to the Institute and the Institute shall have all powers necessary to take possession of, recover and deal with such assets and discharge such liabilities;

(b) an agreement in relation to the Institute whether in writing or not, to which the former Institute was a party immediately prior to the coming into operation of this Act, and whether or not the agreement was of such nature that the rights and liabilities thereunder could be assigned, shall have the effect as from the coming

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into operation of this Act as if the Institute had been a party to that agreement;

(c) the appointment of any staff or employee of the Institute other than the appointment of the Rector, subsisting before the coming into operation of this Act, if the staff employee so agree, shall be deemed to be made by the Board under the provisions of this Act, and for the purpose of determining the rights of pension or gratuity on retirement, the service of that staff or employee shall be regarded as continuous from the time he was first appointed by the former Institute;

(d) where anything has been commenced by or under the authority of the Government and that thing solely concerns the Institute or was done in relation to a matter concerning the former Institute that thing may be carried on and completed by or under the authority of the Board;

(e) a proceeding in relation to the Institute, pending the coming into operation of this Act, to which the former Institute was a party or by virtue of its establishment, shall continue as if the Institute was a party thereto in lieu of the former Institute;

(f) the former Institute shall, or as the Board may order, deliver to the Institute, all movable property it holds for the purpose of the Institute prior thereto, and all books, papers, documents, minutes, receipts and ledgers pertaining to the Institute and its operations; and

(g) regulations and rules in force immediately prior to the date upon which this Act comes into force, shall remain in force as if they have been made under this Act until such time as they are amended or revoked by the rules or regulations made under this Act.

[s. 25]

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SCHEDULE

(Made under section 5(2))

COMPOSITION AND PROCEDURES OF THE BOARDS

Composition of Board
Act No. 8 of 2023 s.34

1.–(1) The Board shall consist of-

(a) the Chairman who shall be appointed by the President;

(b) such other members not more than five who shall be appointed by the Minister at least one of whom shall be from the private sector; and

(c) one student representing the students' organisation.

(2) Appointment made under subparagraph (1) shall be of a person with necessary experience or qualification in maritime transport, maritime economist, marine engineering or navigation, human resource and public administration, accounting and finance or maritime law.

(3) The Board may co-opt any person to attend and deliberate on a specific matter as the Board may determine and such person shall not have the right to vote.

Tenure of office
Act No. 8 of 2023 s.34

2. Subject to the provisions of this Schedule a member of the Board shall hold office for a period of three years from the date of his appointment but may be eligible for re-appointment for one further period.

Termination of appointment

3. Where a member of the Board absents himself from three consecutive meetings of the Board without reasonable excuse, the Board shall advise the appointing authority of the fact and the appointing authority may terminate the appointment of that member and may appoint a new member in his place.

Where member ceases to be member

4.–(1) Where a member of the Board ceases to be a member by resignation or death or is unable to perform his functions as a member by reason of his absence from the United Republic or by reason of any infirmity of body or mind or where the appointing authority terminates his appointment under paragraph 3, the appointing authority may appoint another member in his place and the member so appointed shall, subject to the provisions of this Schedule hold office for the remainder of the term of his predecessor.

(2) Where in the opinion of the appointing authority, the absence or infirmity of a member is of a temporary nature only, he may appoint a temporary member to take his place and that temporary member shall have, so long as he remains a temporary member, all the powers and functions of a member of the Board:

Provided that, on the resumption of office by the substantive member the temporary member shall cease to hold office.

Vice-Chairman

5. The Board shall elect one of its members to be the Vice-Chairman and a member elected as Vice-Chairman shall, subject to his continuing

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to be a member, hold office of Vice-Chairman for a term to be fixed by the Board and shall be eligible for re- election after the end of that period.

Power of Chairman and Vice-Chairman

6.–(1) The Chairman shall preside at all meetings of the Board.

(2) Where at a meeting of the Board the Chairman is absent, the Vice-Chairman shall preside.

(3) In the absence of both the Chairman and the Vice-Chairman at a meeting of the Board, the members present may, from amongst their number elect a temporary Chairman who shall preside at that meeting.

(4) The Chairman, Vice-Chairman or temporary Chairman presiding at a meeting of the Board, shall have a vote and, in the event of an equality of votes, shall have a casting vote in addition to his deliberative vote.

Meetings
Act No. 8 of 2023 s.34

7.–(1) The Board shall meet quarterly every year.

(2) The Chairman or in his absence, the Vice-Chairman, may at any time, call a special meeting of the Board upon request by a majority of the members.

Quorum

8. At a meeting of the Board not less than one third of the members in office for the time being shall constitute a quorum.

Decision by vote

9. Subject to the provisions relating to a casting votes, all questions at a meeting of the Board shall be determined by the majority of the votes of the members present, and where a member refuses or fails to vote on any question, he shall be deemed to have cast a negative vote.

Decision by circulation of papers

10.–(1) Notwithstanding the provisions of this Schedule, decisions may be made by the Board without a meeting, by circulation of the relevant papers among the members and the expression of the views of the majority thereof in writing.

(2) A member of the Board shall be entitled to require that a decision made under this paragraph be deferred and the subject matter be considered at a meeting of the Board.

Seal of Institute
Act No. 8 of 2023 s.17

11.–(1) The seal of the Institute shall be of such shape, size and form as the Board may determine.

(2) The seal shall be authorised by the signature of the Rector, or any other officer of the Institute authorised by the Rector in that behalf.

Signification of other documents
Act No. 8 of 2023 s.17

12. Documents to which the Institute is a party, other than documents required by law to be under seal and all decisions of the Board, may be signified under the hand of the Rector, or other officer of the Institute authorised by the Rector in that behalf.

Record of proceeding of Board

13.–(1) The Board shall cause minutes of all proceedings of meetings of the Board to be entered in a book kept for the purpose.

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(2) Subject to subparagraph (1), the minutes if purporting to be approved by the members of the Board and signed by the Chairman on the next succeeding meeting of the Board shall be evidence of such proceeding and until the contrary is proved, the meeting to which the minutes related shall be deemed to have been duly convened and all proceedings thereto have been duly transacted.

Proceedings not to be invalid by reason of irregularity

14. An act or proceeding of the Board shall not be invalid by reason of the number of members not being complete at the time of such act or proceedings or of any defect in the appointment of any member or the fact that any member was at the time disqualified or disentitled to act as such.

Board may regulate its proceedings

15. Subject to the provisions of this Schedule the Board may regulate its proceedings.

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